

Arlington Town Meeting — Substitute Motion

ARTICLE NO. 53

Dated: April 28, 2026

We, Joanne Cullinane and Larry Slotnick, do hereby submit the following Substitute Motion under Article 53:

Voted: To add the following sentence to the very end of “Section 5.8.4.E.(1)” of the Zoning Bylaw to clarify the conditions under which a developer might qualify to receive a bonus for providing a significant contribution to the Town in exchange for permission to add 1-2 extra stories (above 4 stories As of Right) and a Zero Setback in eligible locations in the MBTA Act overlay on Broadway and Mass Ave:

For purposes of this subsection 5.8.4.E.(1), ground floor at street level refers to the two-dimensional area of the surface that the structure occupies, measured from the outside of exterior walls and exterior columns and firewalls, projected onto the ground plane, including cantilevered portions of the structure but excluding the edge of roofs that overhang exterior walls and excluding open decks as well as balconies that overhang an exterior wall.

Comment: This motion clarifies the definition of the words, “where the ground floor at street level will be at least 60% occupied by eating and drinking establishments, businesses services, childcare, or retail uses,” so as to re-affirm the agreed-upon proportion of the ground floor that must be occupied by specified commercial uses for a development to qualify for the commercial bonus provision in either of the Mass Ave / Broadway overlay districts, and how that proportion is to be calculated.

Developer bonuses do not affect the Town’s MBTA Act compliance. The bonuses were optional and added to the bylaw as potential incentives to get things that residents stated they’d like to see more of. In August of 2024, Arlington’s Economic Development coordinator stated that commercial spaces over 3000 ft continued to be in especially short supply and high demand.

The standard that was proposed to and adopted by the Redevelopment Board in 2023 was 60% of the structure’s Footprint. This motion seeks to clarify that commercial bonuses are to be awarded only if a developer includes commercial space that comprises 60% of the Footprint at street level in exchange for the large zoning concessions this bonus offers in return (i.e. building 5 stories high for 65 feet on Broadway, or six stories high for 72 feet on Mass Ave + a zero setback). It upholds the letter and intent of our Bylaw.

https://youtube.com/clip/Ugkx8LWikYKYEBIVF-KUJmtAhtUj6P4hu_3?si=akIsX5oR-1Rnacijy

Date Voted:

Action Taken:

Respectfully submitted,
/s/ Joanne Cullinane
Precinct 21

/s/ Larry Slotnick
Precinct 7